

25STCV25347 25STCV25347

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-06-25

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Case Number: 25STCV25347 Hearing Date: June 25, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

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Kristen taylor-ladd

, et al.;

Plaintiffs,

vs.

prime/park labrea

titleholder, llc

, et al.;

Defendants.

Case

No.:

25STCV25347

Hearing

Date:

June
25, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

defendant prime/park labrea titleholder, llc's
motion to strike portions of plaintiffs' complaint

MOVING PARTIES: Defendant Prime/Park LaBrea
Titleholder, LLC

RESPONDING PARTIES: Plaintiffs Kristen Taylor-Ladd and Meagan
Donovan

Motion to Strike Portions of Plaintiffs' Complaint

The court
considered the moving, opposition, and reply papers filed in connection with
this motion.

DISCUSSION

Defendant Prime/Park LaBrea Titleholder ("Defendant") moves the court to strike from plaintiffs Kristen Taylor-Ladd ("Taylor-Ladd") and Meagan Donovan's (collectively, "Plaintiffs") Complaint all allegations purporting to state a basis for punitive or exemplary damages and the corresponding punitive/exemplary damages request in the Prayer.

The court grants Defendant's motion to strike because Plaintiffs have failed to allege facts establishing that Defendant's conduct was authorized by an officer, director, or managing agent of Defendant. (Code Civ. Proc., § 436; Civ. Code, § 3294, subd. (b) ["With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud,

or malice must be on the part of an officer, director, or managing agent of the corporation”].) Plaintiffs only allege that Defendant’s head maintenance worker, Defendant’s workers, and Defendant’s property management team ignored Plaintiffs, dismissed Plaintiffs, or incorrectly marked repairs as completed, but fail to allege that any of these individuals were an officer, director, or managing agent of Defendant. (Compl., ¶¶ 25, 28, 29, 32, 33.)

ORDER

The court grants defendant Prime/Park LaBrea Titleholders, LLC’s motion to strike portions of the Complaint alleging punitive or exemplary damages and the corresponding punitive/exemplary damages request in the Prayer with leave to amend.

The court grants plaintiffs Kristen Taylor-Ladd and Meagan Donovan 20 days leave to file an amended complaint to cure the defects regarding the punitive or exemplary damages allegations set forth in this order.

The court orders defendant Prime/Park LaBrea Titleholders, LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: June 25, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court